

The Code the Courts Do Not Cite:

Measuring Uptake After Codification

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ABSTRACT

Comparative law has long asked what happens when a state enacts a code. The answer has been sought in doctrine, in institutions, and in economic aggregates, but almost never in the one place where a code either works or does not: the reasoning of the courts said to apply it. This Article supplies that measurement for a jurisdiction that has just codified. Saudi Arabia enacted a comprehensive civil code in 1444H, and the same royal decree amended the jurisdiction clause of its commercial courts to point at it. Its Ministry of Justice publishes commercial judgments in full text. Matching 121,207 statutory citations drawn from 50,666 published judgments to 15,855 enacted articles across 291 instruments, this Article measures uptake at the level at which a lawyer argues: the article.

Uptake is low and lopsided. 11.7 per cent of the statute book is ever cited; 30.5 per cent of the articles within the commercial courts' own statutory jurisdiction; and 89.2 per cent of what is applied is procedural rather than substantive. The contrast needs no denominator: the law telling the court how to proceed has 99.0 per cent of its articles cited, and the code telling the court what the parties owe each other has 27.5 per cent. Segmenting each judgment by its own headings locates the narrowing at the bench rather than the bar. The Article argues that enactment and uptake are separate facts, that the second is measurable wherever judgments are published, and that comparative law's central claims about transplanted codes have been resting on the first.

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I. Introduction

A legislature that enacts a code has done something. What it has done is usually described in the language of the enactment itself: a rule now exists, a gap is closed, a field is governed. Whether the courts said to apply the code in fact reason from it is a different proposition, and it has been remarkably hard to check.

The difficulty is not conceptual. It is that checking requires two things at once, in the same jurisdiction, at the same level of detail: a machine-readable statute book, article by article, and a body of judgments in full text large enough that what the courts cite can be counted rather than sampled. Where judgments are published in full, codes are old; where codes are new, judgments are seldom published. Comparative law has therefore argued about the effect of transplanted codes for half a century on evidence that never included the courts' own words at scale.²

Saudi Arabia has, for a brief period, both. The Civil Transactions Law was issued by Royal Decree No. M/191 of 29/11/1444H, codifying the general law of obligations and contract for the first time in the Kingdom's modern history.³ The same decree amended article 16 of the Commercial Courts Law, the provision that fixes what the commercial courts may hear.⁴ And the Ministry of Justice publishes commercial judgments in full text, including the appellate decision where a case went up.

²The canonical statement of the problem is ALAN WATSON, *LEGAL TRANSPLANTS: AN APPROACH TO COMPARATIVE LAW* (2d ed. 1993), which treats borrowing as the ordinary engine of legal change. The principal empirical challenge is Daniel Berkowitz, Katharina Pistor & Jean-François Richard, *The Transplant Effect*, 51 *AM. J. COMP. L.* 163 (2003), which measures the consequences of transplantation through institutional and economic indicators rather than through adjudication itself.

³Civil Transactions Law, Royal Decree No. M/191 (29/11/1444H) (Saudi Arabia) [hereinafter CTL]. The corpus used here holds all 721 of its articles, each verified against the Ministry of Justice's own legal portal.

⁴Commercial Courts Law, Royal Decree No. M/93 (15/8/1441H) (Saudi Arabia) [hereinafter CCL], art. 16, as amended by Royal Decree No. M/191 (29/11/1444H). The amendment is not incidental to this Article's question: the instrument that created the code also redrew, in the same breath, the jurisdiction of the courts most likely to apply it.

That conjunction permits the measurement this Article reports. Drawing 121,207 statutory citations from 50,666 published judgments and matching each to the article cited, across 15,855 articles in 291 instruments, it asks how much of an enacted statute book a court system actually uses.

The answer is that uptake is small, and that its shape is more informative than its size. 11.7 per cent of the articles in the statute book are ever cited in a published judgment. Narrowing the denominator to the articles falling within the commercial courts' own statutory jurisdiction — the field the legislature itself marked out for them — raises it to 30.5 per cent, which still leaves better than two articles in three untouched. And 89.2 per cent of everything the courts do cite is procedural: it governs how a case is heard rather than what the parties owe each other.

The sharpest form of the result needs no denominator at all, because it compares two instruments to themselves. The Commercial Courts Law, which tells the court how to proceed, has 99.0 per cent of its 96 articles cited somewhere in the corpus. The Civil Transactions Law, which tells the court what the parties owe each other — and which the amended jurisdiction clause of the first statute points the court toward — has 27.5 per cent of its 721. A legislature enacted both. The courts have taken up one.

Three further results bear on why, and each is designed to close an explanation that would otherwise be available. First, the narrowing is not imposed by the parties. Segmenting each judgment at its own headings, and attributing each citation in the statement of the case to the court or to a litigant, shows the court's reasons to be *more* procedural than the arguments put to it, not less.⁵ Substantive instruments are raised, and are answered with procedure.

Second, the unused portion of the book is not merely its neglected or superseded portion. If legislative attention tracked judicial use, the amended part of the statute book would be the applied part. Within instruments, it is not.

Third, the measurement is not an artefact of what the Ministry chooses to publish, or at least not

⁵See *infra* Part IV.C. The attribution step matters: a court reciting the provisions under which it convened is not a party raising them, and leaving that narration inside the parties' segment flatters the parties' procedural share.

in the direction that would explain it away. The published record is overwhelmingly commercial, which is precisely why the Civil Transactions Law's low share is difficult to dismiss: these are the courts whose jurisdiction clause was amended to name it.

This Article proceeds in five Parts. Part I sets out what comparative law has claimed about codification and transplantation, and why the claim has not been tested against adjudication. Part II describes the Saudi setting: the code, the jurisdiction clause, and the publication practice that makes the measurement possible. Part III states the method, including three defects that produced confident wrong answers before they were found. Part IV reports the findings. Part V takes up what follows for comparative law, for legislative evaluation, and for the courts themselves, and states the limits that bound every figure here — the most important being that this Article measures the first years of a code, and a code's first years are not its verdict.

II. Codification and Its Unmeasured Promise

A. What Enactment Is Taken to Accomplish

A code promises three things at once, and they are worth separating because only the first is delivered by the act of enactment.

The first is *availability*. Where the governing rule previously had to be derived — from doctrinal treatises, from the reasoning of earlier adjudications, from the opinions of qualified jurists — a code supplies a numbered article that can be read, quoted, and disagreed with. This is accomplished the moment the text is promulgated.

The second is *determinacy*. A code is supposed to narrow the range of defensible answers to a legal question. Two judges reading article 76 should reach the same place more often than two judges reasoning from first principles. This is not accomplished by promulgation; it is a prediction about what judges will do.

The third is *displacement*. A code is supposed to become the operative source, so that the uncoded materials it drew on recede into a background role. This too is a prediction, and it is the strongest of the three, because a code may be available and even determinate while the courts

continue to decide on other grounds entirely.

Comparative scholarship has generally treated the second and third as following from the first, or as questions to be answered doctrinally — by reading the code, reading the commentary, and reasoning about what a court applying them would do.⁶ This Article's claim is narrower than a criticism of that method: it is that where judgments *are* published in full, displacement is an observable fact rather than an inference, and that observing it changes what can be said.

B. Transplantation, Irritation, and the Missing Evidence

The question has been most sharply posed in the literature on legal transplants. Watson's position, that borrowing is the ordinary mechanism of legal change and that rules travel more easily than their social context would suggest, made transplantation look cheap.⁷ The reaction to it made transplantation look expensive in two different ways.

Legrand's objection was conceptual: a rule detached from the interpretive community that gives it meaning is not the same rule, so a transplant in the strict sense is impossible.⁸ Teubner's was mechanical: a borrowed doctrine does not integrate but irritates, and the receiving system reorganizes around it in ways neither the lender nor the borrower intended.⁹ Langer's refinement, published in this journal, replaced the metaphor of transplantation with translation, and showed through plea bargaining's spread into four civil-law systems that what arrives is systematically not what was sent.¹⁰

⁶The move is not naive. Where judgments are unpublished or terse, doctrinal inference is the only method available, and much of the comparative literature was built in exactly that condition.

⁷ALAN WATSON, *LEGAL TRANSPLANTS: AN APPROACH TO COMPARATIVE LAW* 21–30, 95–101 (2d ed. 1993).

⁸Pierre Legrand, *The Impossibility of 'Legal Transplants'*, 4 MAASTRICHT J. EUR. & COMP. L. 111 (1997).

⁹Gunther Teubner, *Legal Irritants: Good Faith in British Law or How Unifying Law Ends Up in New Divergences*, 61 MOD. L. REV. 11 (1998).

¹⁰Máximo Langer, *From Legal Transplants to Legal Translations: The Globalization of Plea Bargaining and the Americanization Thesis in Criminal Procedure*, 45 HARV. INT'L L.J. 1 (2004).

Alongside this ran an empirical literature that tried to price the transplant directly. Berkowitz, Pistor and Richard argued that how a legal order was received — whether it was adapted to local conditions and whether the population was familiar with its concepts — predicted later legal effectiveness better than which family it came from.¹¹ That work descends from the legal origins literature, which correlated the content of formal law with financial and economic outcomes across many jurisdictions.¹²

Every one of these accounts is about what happens after a code arrives. Not one of them observes the courts applying it, article by article. Legrand and Teubner argue from doctrine; Langer works from close comparative study of procedure in four systems; Berkowitz, Pistor and Richard work from country-level indices of legality; the legal origins literature works from the content of statutes and from economic aggregates. The dependent variable is always something other than the reasoning of the courts said to be applying the transplanted law.

That is not an oversight. Measuring the reasoning requires the reasoning to be public, in quantity, and machine-readable, and requires the statute book to be available at the same granularity — and until very recently no jurisdiction that had just codified offered both.

C. What Would Count as Evidence

If the operative question is displacement — whether the enacted code has become the source the courts reason from — then the evidence is what the courts cite, and the unit is the article.

The unit matters more than it may appear. An instrument-level measurement asks whether a code has been cited at all, and every enacted code will pass that test within months: one citation in one judgment suffices. An article-level measurement asks how much of the code has entered

¹¹Daniel Berkowitz, Katharina Pistor & Jean-François Richard, *The Transplant Effect*, 51 AM. J. COMP. L. 163 (2003). The economic companion is Daniel Berkowitz, Katharina Pistor & Jean-François Richard, *Economic Development, Legality, and the Transplant Effect*, 47 EUR. ECON. REV. 165 (2003).

¹²Rafael La Porta, Florencio Lopez-de-Silanes, Andrei Shleifer & Robert W. Vishny, *Law and Finance*, 106 J. POL. ECON. 1113 (1998).

use. A code of several hundred articles that is cited constantly, but always through the same dozen provisions, has been received in a way that instrument-level counting cannot distinguish from full uptake — and the difference is the whole of what codification was supposed to change.

Three conditions therefore have to hold together, and they rarely do:

1. The statute book must exist as structured text at article level, with each article's number, status and text recoverable, so that a citation can be matched to the provision it names rather than merely to the instrument.
2. Judgments must be published in full text and in quantity, so that what courts cite can be counted rather than sampled, and so that *where* in a judgment a citation falls — in the recital of the parties' arguments or in the court's own reasons — can be read.
3. The code must be new enough that uptake is still a live question. Measuring uptake of a two-hundred-year-old code answers a different question: it describes a settled equilibrium rather than the transition into one.

Work joining legislation and adjudication computationally has grown quickly, but it has grown where the first two conditions hold and the third does not.¹³ The United States and Germany are not jurisdictions in which anyone is waiting to see whether the code will be taken up.

Saudi Arabia satisfies all three, and will not satisfy the third for long. That is the opportunity this Article takes.

III. The Saudi Setting

A. A Statute Book Built in a Decade

The Kingdom's constitutional arrangement makes the question here unusually sharp. The Basic Law of Governance provides that the courts apply the rules of the Islamic Shari'ah, together with the

¹³See, e.g., Corinna Coupette et al., *Measuring Law Over Time: A Network Analytical Framework with an Application to Statutes and Regulations in the United States and Germany*, 9 FRONTIERS IN PHYSICS, art. 658463 (2021) (statutory structure over time in two mature systems); James H. Fowler et al., *Network Analysis and the Law: Measuring the Legal Importance of Precedents at the U.S. Supreme Court*, 15 POL. ANALYSIS 324 (2007) (citation networks among judicial decisions).

regulations issued by the ruler.¹⁴ A Saudi judge therefore has, as a matter of constitutional structure, a source of decision that does not depend on any enacted text. Codification in this setting is not the reorganization of an existing statutory field; it is the introduction of enacted articles alongside a source that was already sufficient to decide the case.

Most of the relevant statute book was built within a single decade. The Law of the Judiciary, which organizes the courts and defines the hierarchy from the first-degree courts through the appellate courts to the Supreme Court, dates from 1428H.¹⁵ The Law of Enforcement followed in 1433H,¹⁶ the Arbitration Law in the same year,¹⁷ the Law of Shari‘ah Procedure in 1435H,¹⁸ the Commercial Courts Law in 1441H,¹⁹ the Evidence Law in 1443H,²⁰ and the Civil Transactions Law in 1444H.

The order is worth noticing. The instruments governing *how* a case is heard were enacted first, over more than a decade. The instrument governing *what the parties owe each other* came last.

B. The Civil Transactions Law

The Civil Transactions Law was issued by Royal Decree No. M/191 of 29/11/1444H. It contains 721 articles covering obligations, contract, and the general principles of civil liability, and it is the first codification of that field in the Kingdom’s modern history.²¹

¹⁴Basic Law of Governance, Royal Order No. A/90 (27/8/1412H) (Saudi Arabia), arts. 46–48, 67.

¹⁵Law of the Judiciary, Royal Decree No. M/78 (19/9/1428H) (Saudi Arabia), art. 9.

¹⁶Law of Enforcement, Royal Decree No. M/53 (13/8/1433H) (Saudi Arabia).

¹⁷Arbitration Law, Royal Decree No. M/34 (18/7/1433H) (Saudi Arabia).

¹⁸Law of Shari‘ah Procedure, Royal Decree No. M/1 (22/1/1435H) (Saudi Arabia).

¹⁹CCL, *supra* note 4.

²⁰Evidence Law, Royal Decree No. M/43 (26/5/1443H) (Saudi Arabia). Its arrival repealed the entire evidence chapter of the Commercial Courts Law — articles 38 through 57 — so that evidence is now governed uniformly across the courts.

²¹CTL, *supra* note 3. The corpus used in this Article holds the full official Arabic text of all 721 articles, cross-checked article by article against the Ministry of Justice’s legal portal and, where the two diverged, against the Ministry’s

Its enactment did not displace the uncoded sources as a matter of constitutional form; the Basic Law's direction to the courts was not amended. What the code offers a Saudi judge is an available and authoritative statement, in numbered articles, of rules that previously had to be derived. Whether judges reason from it is exactly the question this Article measures, and it is a real question rather than a rhetorical one, because a judge who does not cite the code has not thereby decided unlawfully.

C. The Jurisdiction Clause

One feature of the enactment makes the measurement below more pointed than it would otherwise be.

Royal Decree No. M/191 did not only issue the Civil Transactions Law. The same decree amended article 16 of the Commercial Courts Law — the provision fixing what the commercial courts have jurisdiction to hear.²²

So the instrument that created the code, in the same breath, redrew the jurisdiction of the courts most likely to apply it. This is not a case in which a legislature enacted a code and left the courts to discover it. The legislature pointed.

The pointing also supplies this Article with a denominator that is not of its own choosing. A natural objection to any measurement of statutory uptake is that the denominator is arbitrary: the courts should not be expected to cite the whole statute book, only the part relevant to what they hear. Article 16 answers that objection in the legislature's own words rather than the author's, by defining the field the commercial courts are to occupy. Part IV reports the uptake figure under that restricted denominator as well as under the full statute book, and the restriction does not rescue the result.

own published PDF. The law is unamended: every article stands as originally enacted.

²²CCL art. 16, as amended by Royal Decree No. M/191 (29/11/1444H). Article 16 is also, by a wide margin, the most-cited single article in the entire corpus, appearing 16,265 times. The courts read their own jurisdiction clause constantly.

D. A Published Record

The Ministry of Justice publishes Saudi commercial judgments in full text through the interface its own portal uses. A published record carries the judgment; where the case was appealed, it carries the appellate decision as well, in a separate field of the same record.

Two features of the published record shape the method rather than the interpretation, and are stated here because a reader entitled to check this Article's figures needs them.

First, the interface exposes fields named for the structural parts of a judgment — its facts, its reasons, its ruling — and every one of them is null in every record. The structure of a judgment must therefore be read from its text, using the headings Saudi courts themselves write.

Second, the interface exposes a flag marking a record as an appeal. The flag is present and well-typed, and it is false on every record in the corpus, including every record that carries an appellate decision. First instance and appeal are distinguished here by the fields that hold the text, not by the flag provided for the purpose.

Neither defect affects what the courts cite. Both affect how a researcher must read the record, and a study that trusted either would report structure that is not there.

IV. Method

[Part III.]

V. Findings

A. Uptake at the Article Level

B. The Procedural Asymmetry

C. The Bench, Not the Bar

D. Amendment Does Not Predict Use

VI. Implications and Limits

A. For Comparative Law

B. For Legislative Evaluation

C. Limits

Data and Code

The corpus, the extraction and matching code, and the scripts that generate every figure in this Article are public.²³

²³<https://github.com/Abdullah-m7/saudi-legal-corpus-ai>. Every measurement reported here is generated into a single file of macros and typeset from it; a check refuses to build a manuscript that types one by hand.